PECH GROUP HOLDINGS LTD

Technology & Infrastructure Enablers for Africa

PECH GROUP HOLDINGS

CERTIFIED INSTALLER AGREEMENT

PECH Group Holdings Ltd

CERTIFIED INSTALLER AGREEMENT

THIS AGREEMENT is made on this ___ day of _____, 20___

BETWEEN:

PECH GROUP HOLDINGS LTD (RC Number: _____), Lagos, Nigeria (hereinafter **"PECH"** or the **"Company"**)

AND:

Installer Name/Business: _____

RC/BN Number (if applicable): _____

Address: _____

Phone: _____ **Email:** _____

(hereinafter the **"Installer"**)

1. DEFINITIONS

Term	Definition
PECH Devices	IoT sensors, smart meters, solar equipment, networking hardware, and all other hardware products manufactured, distributed, or sold by PECH
Installation Services	The installation, configuration, commissioning, testing, and basic maintenance of PECH Devices
Certification	The PECH Certified Installer credential obtained by completing the PECH Installer Training Program
Territory	The geographic area assigned to the Installer as specified in Clause 14
Job	An individual installation assignment issued by PECH or directly by a customer through the PECH Platform
Completion Certificate	The Installation Completion Certificate issued upon successful completion and customer acceptance of a Job

2. APPOINTMENT

2.1. PECH hereby appoints the Installer as an **authorized, non-exclusive** PECH Certified Installer for the Territory specified in Clause 14.

2.2. This appointment does not create an employment relationship. The Installer is an independent contractor.

2.3. PECH reserves the right to appoint other installers within the same Territory.

PECH GROUP HOLDINGS LTD

3. SCOPE OF WORK

3.1. The Installer shall provide Installation Services for PECH Devices, including:

(a) **Site survey and assessment** — evaluating installation locations for suitability;

(b) **Installation** — physical mounting, wiring, and connecting PECH Devices per technical specifications;

(c) **Configuration** — setting up devices on the PECH Platform, connecting to networks, configuring parameters;

(d) **Commissioning** — testing installed devices, verifying connectivity and data transmission;

(e) **Customer training** — basic user training on device operation and the PECH dashboard/app;

(f) **Basic maintenance** — routine inspections, firmware updates, minor repairs during the warranty period;

(g) **Documentation** — completing Installation Completion Certificates, taking before/after photos, logging work in the PECH system.

4. CERTIFICATION REQUIREMENTS

4.1. The Installer must:

(a) Complete the **PECH Installer Training Program** (covering all device categories they will install);

(b) Pass the **PECH Certification Examination** with a minimum score of 80%;

(c) Maintain certification through **annual re-certification** (refresher training + exam);

(d) Attend any mandatory training sessions for new device categories or platform updates.

4.2. PECH shall provide initial training at no cost to the Installer. Re-certification training costs shall be borne by: [ ] PECH [ ] Installer [ ] Shared equally.

4.3. The Installer's certification may be suspended or revoked for failure to maintain standards as set out in Clause 5.

5. QUALITY STANDARDS

5.1. All installations must comply with:

(a) PECH technical specifications and installation guides;

(b) Applicable Nigerian electrical and safety standards (SON, NEMSA);

(c) Manufacturer's guidelines for third-party components;

(d) Local building codes and regulations.

5.2. The Installer shall:

(a) Use only PECH-approved tools, materials, and accessories;

(b) Follow proper safety procedures at all times;

(c) Leave the installation site clean and in good order;

(d) Complete quality checklists for every Job.

5.3. PECH reserves the right to conduct random quality audits and inspections of completed installations.

6. EQUIPMENT AND MATERIALS

6.1. **PECH Devices:** PECH shall supply all devices, components, and specialized accessories at the agreed installer pricing. The Installer shall not source PECH Devices from unauthorized channels.

6.2. **Installer Tools:** The Installer shall provide their own tools and general installation equipment.

6.3. **Handling and Storage:** The Installer shall store PECH Devices in a clean, dry, secure location and handle them with appropriate care. The Installer is responsible for any damage to devices in their custody.

6.4. **Returns:** Unused or defective devices shall be returned to PECH within seven (7) business days.

7. PRICING AND PAYMENT

7.1. **Installation Fees:**

Service Type	Rate
Standard Residential Installation	NGN _____ per Job
Standard Commercial Installation	NGN _____ per Job
Complex/Custom Installation	As quoted per project
Maintenance Visit	NGN _____ per visit

7.2. **Commission on Device Sales:** Where the Installer directly sells PECH Devices to customers, the Installer shall receive a commission of ____% of the device retail price.

7.3. **Payment Terms:**

(a) Payment shall be processed within fourteen (14) business days of verified Job completion (as confirmed by customer sign-off on the Completion Certificate and PECH system verification);

(b) Payment shall be made by bank transfer to the Installer's designated account;

(c) PECH shall deduct applicable withholding tax at source per FIRS requirements.

7.4. **Disputed Jobs:** If a customer reports quality issues within seven (7) days of installation, payment may be withheld pending resolution. The Installer shall rectify any issues at their own cost within five (5) business days.

8. WARRANTY OBLIGATIONS

8.1. The Installer **warrants their workmanship** for a period of twelve (12) months from the date of installation.

8.2. During the warranty period, the Installer shall rectify, at their own cost, any defects arising from:

(a) Incorrect installation or configuration;

(b) Use of incorrect materials or methods;

(c) Failure to follow PECH technical specifications.

8.3. **PECH covers** manufacturing defects in PECH Devices under the manufacturer's warranty. The Installer shall assist with warranty claims by providing installation records and facilitating device replacement.

8.4. Warranty rectification must be completed within **five (5) business days** of notification, or within **twenty-four (24) hours** for critical system failures.

9. INSURANCE

9.1. The Installer shall maintain at all times during the term of this Agreement:

(a) **Professional liability insurance** with a minimum coverage of NGN _____;

(b) **Public liability insurance** with a minimum coverage of NGN _____;

(c) **Workers' compensation** for any employees/assistants of the Installer.

9.2. The Installer shall provide proof of insurance to PECH annually and upon request.

9.3. Failure to maintain required insurance is grounds for immediate suspension of the Installer's certification.

10. INTELLECTUAL PROPERTY

10.1. **PECH Branding:** The Installer may use PECH trademarks, logos, and branding materials only as authorized by PECH and in accordance with PECH's brand guidelines. All branding materials remain the property of PECH.

10.2. **No Unauthorized Use:** The Installer shall not use PECH trademarks in any manner that implies endorsement or creates confusion, or modify PECH branding without written approval.

10.3. **Installation Data:** All data generated from installations (configuration data, performance data, customer information, site records) belongs to PECH.

10.4. Upon termination, the Installer shall cease using all PECH branding and return all branded materials.

11. CONFIDENTIALITY

11.1. The Installer shall keep confidential:

(a) Customer personal data and installation details;

(b) PECH pricing structures and installer margins;

(c) Technical specifications and proprietary installation methods;

(d) Business strategies and partnership details;

(e) Any information marked confidential.

11.2. Obligations survive termination for five (5) years (perpetual for trade secrets).

12. NON-COMPETITION

12.1. During the term of this Agreement and for twelve (12) months after termination, the Installer shall not install, distribute, or promote products that directly compete with PECH Devices in the same product categories within the Territory.

12.2. "Competing products" means IoT sensors, smart meters, solar monitoring systems, and networking hardware that perform substantially similar functions to PECH Devices.

12.3. This restriction does not prevent the Installer from providing general electrical or installation services unrelated to competing products.

13. PERFORMANCE METRICS

13.1. The Installer shall maintain the following minimum performance standards:

Metric	Minimum Standard
Installation Quality Score	4.0/5.0 (based on PECH quality audits)
Customer Satisfaction Rating	4.0/5.0 (based on customer feedback)
Response Time (new Job acceptance)	Within 48 hours of assignment
Job Completion Time	Within agreed timeline per Job
Warranty Callback Rate	Less than 5% within 90 days

13.2. Performance shall be reviewed quarterly. Two consecutive quarters below minimum standards may result in suspension or revocation of certification.

14. TERRITORY

14.1. The Installer is assigned the following Territory:

State(s): _____

LGA(s)/Area(s): _____

14.2. The Territory assignment is **non-exclusive** unless PECH determines, based on performance, that exclusivity is warranted.

14.3. PECH may modify Territory assignments with thirty (30) days' written notice.

15. TERMINATION

15.1. **By Either Party:** Thirty (30) days' written notice.

15.2. **Immediate Termination by PECH:** For:

(a) Safety violations or negligence;

(b) Quality failures affecting customer safety;

(c) Fraud, theft, or dishonesty;

(d) Failure to maintain certification or insurance;

(e) Material breach of this Agreement;

(f) Bringing PECH into disrepute.

15.3. **De-Certification Process:** Upon termination:

(a) The Installer shall immediately cease representing themselves as a PECH Certified Installer;

(b) All PECH branding materials, uniforms, and promotional items shall be returned;

(c) All PECH Devices in the Installer's possession shall be returned or paid for;

(d) Outstanding payments for verified completed Jobs shall be processed;

(e) Customer handover shall be completed.

16. DISPUTE RESOLUTION

16.1. Good faith negotiation, then mediation, then arbitration in Lagos per the Arbitration and Mediation Act 2023.

16.2. **Governing Law:** Laws of the Federal Republic of Nigeria.

17. GENERAL PROVISIONS

17.1. **Independent Contractor:** The Installer is an independent contractor, not an employee of PECH.

17.2. **No Agency:** The Installer has no authority to bind PECH or make commitments on its behalf.

17.3. **Entire Agreement, Severability, Amendment (written only), No Assignment without consent.**

SIGNATURES

FOR AND ON BEHALF OF PECH GROUP HOLDINGS LTD:

Name:	_____
Title:	_____
Signature:	_____
Date:	_____

INSTALLER:

Name/Business:	_____
Signature:	_____
Date:	_____

WITNESS:

Name:	_____
Signature:	_____
Date:	_____

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